

25STCV11999 25STCV11999

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-14

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Case Number: 25STCV11999 Hearing Date: July 14, 2026 Dept: 512

default judgment checklist:

Case No.

25STCV11999

Case Name:

Govea v. Estate of H.P. Henderson, et al.

Hearing Date:

Tuesday, July 14, 2026

Defaulting defendant(s)

Estate

of h.p. henderson; estate of dell henderson; rosie johnson

TENTATIVE RULING:

On April 24, 2025, Plaintiff

Joel Govea ("Plaintiff") filed the instant action against Defendants Estate of H.P. Henderson, Estate of Dell Henderson, and Rosie Johnson ("Defendants") and Does 1-10, alleging causes of action for Quiet Title through Adverse Possession and Unjust Enrichment.

On June 4, 2025, Rosie

Henderson was named as Doe No. 1 and Henry P. Henderson was named as Doe No. 2.

On December 19, 2025, the Court ordered that the service of summons and complaint may be served by publication in the Daily Journal as to Rosie Henderson, Estate of Dell Henderson, Rosie Johnson, Estate of H.P. Henderson, and Henry P. Henderson. (12/19/25 Orders.)

On February 5, 2025, Plaintiff filed Proof of Publication.

On April 22, 2026, default was entered against Estate of H.P. Henderson, Estate of Dell Henderson, Rosie Johnson, Henry P. Henderson, and Rosie Henderson.

Plaintiff seeks quiet title of the property located at 1426 East 58' Place, Los 26 27 28 Angeles, CA 90001; APN: 6008-019-010-21-000.

Plaintiff has submitted some of the requisite documentation and provided some sufficient evidence to support the judgment sought. However, the Court notes the following deficiencies exist in the Default Judgment Packet:

- No Proposed Judgment on JUD-100 Form or a Proposed Judgment meeting the same elements as JUD-100 form was filed. Further, there are specific requirements for a judgment for quiet title that must be met.
- No Doe Dismissal filed.
- There is no proof of mail service following service by publication on all Defendants.
- The proof of mailing section is blank on the CIV-100 Request for Entry of Default form.
- The Complaint is too conclusory and fails to include specific facts constituting adverse possession.
- There is no proof that a notice of pendency of the action was filed in the office of the county recorder of the county in which

the real property is located. (See Code Civ. Proc., § 761.010.)

- The Does added on June 4, 2025, have not been formally included in the Complaint.

- The evidence in support of the Default Judgment Packet is too conclusory and insufficient to support the elements for adverse possession.

Based on the foregoing, the Default Judgment Packet is
REJECTED.

Plaintiff is ordered to RESUBMIT the Default Judgment Packet addressing the deficiencies listed. Furthermore, the Court will not enter a default judgment in a quiet title action solely based on the defendant's failure to answer. (See Code of Civil Procedure section 764.010; Harbour Vista, LLC v. HSBC Mortgage Services Inc. (2011) 201 Cal.App.4th 1496, 1507-1508.)

The Court schedules a Prove-Up Hearing and an Order to Show Cause Re: Default Judgment Packet for September 14, 2026, at 10:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

The parties are required to attend the hearing in person.